

SENATE BILL 1220

By Oliver

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 8; Title 29 and Title 50, relative to workplace
conditions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 50, Chapter 3, is amended by adding
the following as a new part:

50-3-1101. Short title.

This part is known and may be cited as the "Workers' Right to Live Act."

50-3-1102. Legislative findings.

(a) The general assembly finds that every worker in this state has the right to a
safe workplace and that workplace fatalities due to negligence, unsafe conditions, or
failure to comply with safety regulations must be addressed with accountability
measures.

(b) The purpose of this part is to ensure that businesses operating in this state
are held accountable for workplace fatalities, provide a clear mechanism for reporting
worker deaths, and establish financial penalties and incentive claw back provisions for
employers found responsible for preventable deaths.

50-3-1103. Part definitions.

As used in this part:

(1) "Accountability agreement" means any agreement between an
employer and the department of economic and community development that
includes incentives, tax abatements, or other economic development benefits;

(2) "Claw back provision" means a requirement that an employer repay incentives received if the employer is found in violation of workplace safety regulations and such violation resulted in a workplace fatality;

(3) "Negligence" means a failure to exercise reasonable care in maintaining workplace safety, as determined by an investigation conducted by the division; and

(4) "Workplace fatality" means the death of an employee occurring on-site during work hours or as a direct result of workplace conditions.

50-3-1104. Reporting of workplace fatalities.

(a) A workplace fatality must be reported to the division within twenty-four (24) hours of occurrence.

(b) The department, in consultation with the division, shall establish a reporting system for workplace fatalities, ensuring coordination with the division and local authorities.

(c) If an employer fails to report a workplace fatality within the timeframe required under subsection (a), then the department shall assess a civil penalty of not less than fifty thousand dollars (\$50,000) per violation of subsection (a). Each instance of failing to report a workplace fatality within the timeframe required under subsection (a) constitutes a separate violation.

50-3-1105. Investigation and determination of negligence.

(a) Upon receiving notice of a workplace fatality, the division shall initiate an investigation within five (5) business days.

(b) The division shall determine whether the fatality was due to:

(1) Employer negligence, including a failure to comply with occupational safety and health regulations promulgated pursuant to this chapter, inadequate training, or lack of safety protocols;

(2) An unavoidable medical emergency unrelated to workplace conditions, including a heart attack; or

(3) A true accident without identifiable employer fault.

(c) The division shall publicly report the findings of an investigation pursuant to this section within ninety (90) days of completion of the investigation.

(d) An employer may appeal a determination of negligence in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, within thirty (30) days of receiving the final investigative report.

50-3-1106. Financial penalties and incentive claw backs.

(a) If the division determines in an investigation conducted pursuant to § 50-3-1105 that a workplace fatality resulted from employer negligence, then the employer must be subject to:

(1) A fine of not less than two hundred fifty thousand dollars (\$250,000) for each fatality, payable to the state's worker protection fund, created in § 50-3-1107; and

(2) Additional fines determined by the division based on the severity of the violation and prior violations committed by the same employer.

(b)

(1) On or after July 1, 2025, the department of economic and community development shall include a claw back provision in an accountability agreement that the department enters into with an employer in this state.

(2) If the division determines that a workplace fatality resulted from employer negligence under subsection (a), then an employer that has an accountability agreement with the department of economic and community development, must repay any state-provided incentives or funds received during the preceding three (3) fiscal years.

(c) If an employer demonstrates a pattern of negligence resulting in multiple fatalities, then the employer shall not receive state economic incentives for not less than five (5) years from the date such determination is made.

50-3-1107. Worker protection fund.

(a) There is created in the state treasury the worker protection fund, which is separate and distinct from the general fund and all other reserve funds, to be administered by the division.

(b) The fund consists of moneys collected from the penalties and fines described in §§ 50-3-1104 and 50-3-1106. Moneys in the fund must only be used to effectuate this part.

(c) Moneys in the fund may be invested by the state treasurer in accordance with § 9-4-602.

(d) Interest accruing on investments and deposits of the fund must be credited to the fund, do not revert to the general fund, and must be carried forward into the subsequent fiscal year.

(e) Any balance remaining unexpended at the end of a fiscal year in the fund does not revert to the general fund and must be carried forward into the subsequent fiscal year.

50-3-1108. Rules.

The department shall promulgate rules to effectuate this part, including mechanisms for whistleblower protections for employees reporting unsafe working conditions. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect on July 1, 2025, the public welfare requiring it.